

2011 SCC OnLine All 639 : (2011) 87 ALR 800

(Allahabad High Court)

BEFORE SATYA POOT MEHROTRA AND S.C. AGARWAL, JJ.

Between

Foran Singh

Versus

Executive Engineer Dakshiranchal Vidyut Vitaran
Distribution Division, Firozabad and Another

C.M.W.P. No. 15059 of 2011

Decided on April 11, 2011

The Judgment of the Court was delivered by

SATYA POOT MEHROTRA and S.C. AGARWAL, JJ.:— The present writ petition has been filed by the petitioner making the following prayers:



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“(i) issue a writ, order or direction in nature of *mandamus* for directing the respondents to decide the representation of the petitioner as early as possible within a period of one month.

(ii) issue a writ, order or direction in the nature of the *mandamus* for directing the respondent not to recover any recovery dues from the petitioner till the pendency of the representation.

(iii) issue a writ, order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

(iv) award the cost of the petition in favour of the petitioner.”

2. From the averments made in the writ petition and the Annexures thereto, it appears that the father of the petitioner was having electricity connection for operating tube-well.

3. The case of the petitioner is that the boring failed, consequently, the father of the petitioner applied for disconnection of the said electricity connection. The father of the petitioner died on 30.4.2004.

4. It is averred by the petitioner that the petitioner was under the impression that the said electricity connection had been disconnected. However, he received a Recovery Notice dated 24.7.2009 in the name of his father. Thereupon, the petitioner filed a writ petition before this

Court being Civil Misc. Writ Petition No. 69645 of 2009. The said writ petition was disposed of by this Court by the order dated 22.12.2009 with certain directions. The said order is quoted-below:

“We have heard learned Counsel for the petitioner and learned Standing Counsel appearing for respondent.

The petitioner shall make a fresh representation within two weeks from today which shall be decided by respondent No. 1 in accordance with law by a reasoned and speaking order within a further period of six weeks.

With the aforesaid direction this petition is finally disposed of.

Till the representation of the petitioner is decided, the recovery proceedings against the petitioner shall kept in abeyance. However, in case the petitioner does not make a representation within the time allowed, he shall not be entitled for any relief.”

5. It is further averred by the petitioner that pursuant to the said order dated 22.12.2009, the petitioner submitted a representation dated 12/13.1.2010. However, without disposing the said representation, the respondents issued a Demand Notice dated 20.12.2010 to the petitioner. Copy of the said Demand Notice has been filed as Annexure-3 to the writ petition.

6. By the order dated 14.3.2011 and the subsequent orders passed in the matter, Shri R.K. Pandey, learned Counsel for the respondent Nos. 1 and 2 was given time to obtain instructions in the matter.

7. Shri R.K. Pandey today states that he has received instructions in the matter, and as per the said instructions, the aforesaid representation of the petitioner dated 12/13.1.2010 has been disposed of by the respondent No. 1 by the order dated 4.4.2011. Copy of the said order dated 4.4.2011 has been produced by Shri R.K. Pandey before the Court. Let the same be placed on record. Copy of the said order dated 4.4.2011 has also been supplied to Shri S.C. Mishra, learned Counsel for the petitioner.

8. Shri R.K. Pandey, learned Counsel for the respondent Nos. 1 and 2 further submits that in view of the provisions contained in Clause 7.10 read with



Clause 7.7.1 to 7.7.5 of the U.P. Electricity Supply Code, 2005, the petitioner has got an alternative remedy of filing complaint with the licensee, and, in case, the licensee fails to settle the complaint of the petitioner or the petitioner is not satisfied by the decision of the licensee, the petitioner may file a complaint in the Consumer Grievance

Redressal Forum,

9. Shri S.C. Mishra, learned Counsel for the petitioner submits that in view of the fresh development, the petitioner will seek appropriate remedy, as may be available to him in law.

10. We have considered the submissions made by the learned Counsel for the parties.

11. From the narration of the facts above, it is evident that in view of the order dated 4.4.2011 passed by the respondent No. 1, the prayers made in the writ petition have become infructuous.

12. As regards the order dated 4.4.2011, it is open to the petitioner to pursue appropriate remedy available to the petitioner in view of the provisions contained in Clause 7.10 read with Clauses 7.7.1 to 7.7.5 of the U.P. Electricity Supply Code, 2005.

13. We accordingly dispose of the writ petition leaving it open to the petitioner to pursue appropriate remedy under the relevant provisions of the U.P. Electricity Supply Code, 2005 in respect of the aforesaid order dated 4.4.2011 passed by the respondent No. 1.

Petition Disposed Of.

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